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Case Number: 25STCV26387 Hearing Date: July 1, 2026 Dept: 509

Jorge Montano Nuno v. General Motors, LLC

PLAINTIFF'S MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES

MOVING PARTY: Plaintiff Jorge Montano Nuno

RESPONDING PARTY(S): Defendant General Motors, LLC

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Jorge Montano Nuno (Plaintiff) alleged he purchased a 2022 GMC Sierra 1500 manufactured by Defendant General Motors, LLC (Defendant) that did not conform to the quality and safety guidelines reasonably expected of a motor vehicle.

On September 9, 2025, Plaintiff filed the complaint alleging various violations of the Song-Beverly Act.

On April 30, 2026, Plaintiff filed a notice of settlement of the entire case.

On June 30, 2026, Plaintiff filed this instant motion to recover their reasonable attorney's fees and costs. Defendant opposed.

TENTATIVE RULING:

Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$8,437.50.

Plaintiff's Motion for Costs is GRANTED in the amount of \$1,681.90.

DISCUSSION:

Motion for Attorney's Fees, Costs, and Expenses

I. Analysis

A. Entitlement to Fees

Plaintiff argues "The SAR entered into by the parties stipulated that Plaintiff is entitled to fees, costs, and expenses and therefore agreed that Plaintiff is the prevailing party for the purposes of this Motion." (Mot. at p. 4:8-9.) However, Plaintiff does not provide any evidence of the settlement agreement nor any evidence at all that Plaintiff was the prevailing party in this action. However, Defendant does not appear to challenge the entitlement to fees and recognizes Plaintiff as the prevailing party. (Opp at pp. 3-4.)

Plaintiff now moves for an order awarding attorney's fees and costs totaling \$26,301.30. This amount consists of: (1) \$18,938.0 in attorney fees for Alpha Law Firm, P.C; (2) \$1,681.90 in costs and expenses; and (3) a 0.3 multiplier enhancement on the attorney fees (or \$5,681.40). (See Not. of Mot.)

Civil Code, section 1794(d) provides:

(d) If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code, § 1794, subd. (d) [emphasis added].)

Here, there appears no dispute that Plaintiff is the prevailing party under the Song-Beverly Consumer Warranty Act and the Settlement Agreement between the parties allows Plaintiff to recover their reasonable fees. Accordingly, Plaintiff is entitled to an award of reasonable attorney fees as the prevailing party.

B. Reasonableness of Fees (Lodestar)

The determination of reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095; Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal.App.4th 1127, 1134.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate...." "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal.App.4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal.4th 644, 664.) The burden is on the party seeking attorney fees to prove reasonableness of the fees. (Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 615.)

The Court has broad discretion in determining the amount of a reasonable attorney's fee award which will not be overturned absent a "manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence." (Bernardi v. County of Monterey (2008) 167 Cal. App. 4th 1379, 1393-94.) The Court need not explain its calculation of the amount of attorney's fees awarded in detail; identifying the factors considered in arriving at the amount will suffice. (Ventura v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

It should be noted that state trial court opinions are unpublished and have no precedential value. (Neary v. Regents of Univ. of Calif. (1992) 3 Cal.4th 273, 282.) Likewise, "[w]hile unpublished federal district court opinions are citable, they do not constitute binding authority." (Gong v. City of Rosemead (2014) 226 Cal.App.4th 363, 375.)

1. Reasonable Hourly Rate

Plaintiff was represented by Alpha Law Firm, P.C which staffed attorney Alexander Khoubian, Phillip McCabe, and various paralegals. Khoubian billed at \$575 per hour, McCabe at \$430 per hour, and the paralegals at \$250 per hour.

Plaintiff billed for 33.9 hours for a total of \$15,890.50. (Khoubian Decl., Exh. A.) This does not include the anticipated billing. This gives a blended hourly rate of \$468.75 per hour. Here, under the totality of the circumstances and based upon general prevailing rates in the Los Angeles area for this type of litigation, this Court agrees that a blended rate of \$468.75 per hour is reasonable. [FN 1] This determination considers the complexity of the case, the quality of services provided, and the attorneys' experience. An award at this rate comes with the expectation that the attorney works in an efficient manner that reflects the premium paid for his or her services. The Court considers this fact in addressing the reasonableness of the hours expended.

2. Number of Hours Reasonably Expended

Beginning to end, Plaintiff seeks compensation for a total of 39.7 hours on this case. (Khoubian Decl., Exh. A.) Of those hours, 12.7 hours includes this instant motion as well as anticipated expenses at the hearing. Plaintiff also seeks a flat fee of \$3,500 for the prelitigation onboarding of this case.

"It is the burden of the challenging party to point to the specific items challenged [within the moving party's verified billing invoice], with a sufficient argument and citations to evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488.)

In opposition, Defendant contends the hours purportedly spent by Plaintiff's counsel are excessive. Defendant highlights multiple entries in the billing records it contends are excessive and duplicative. Defendant's points are well taken.

Here, this action occurred for less than seven months, and this Court's docket reflects no law and motion practice in this matter. It appears the parties settled this matter quickly upon mediation. Moreover, there was nothing particularly complex or unique about this case. The issues involved were applicable to other consumers' vehicles, thereby triggering economies of scale in terms of Plaintiff's counsel's efficiency in litigating this type of lemon law case. Litigating this matter should not have required anything more than slight factual modification to existing boilerplate. Consistent with these observations, Counsel's billing records reflect a series of repetitive administrative-type tasks.

Last, but not least, the new opt-in laws applied in this case, including the initial disclosure laws. These laws were designed to streamline and economize the discovery process. See, Civil Code §871.26. That is exactly what occurred in this case. The initial disclosures took place without formal demands or motions, no depositions were noticed or taken, no other discovery took place, and the case apparently settled at the early mandatory mediation under the new opt-in rules. This is exactly what was contemplated and hoped for by enacting these new laws.

Considering these facts, this Court ultimately agrees that in some instances, the time quoted is excessive under the circumstances. In light of the foregoing discussion, and in view of the totality of the circumstances, the Court finds that the total amount of reasonable attorney's fees in this case, using a lodestar methodology, is \$8,437.50. This was calculated by multiplying the hourly rate of \$468.75 by 18 hours, which this Court deems to be the reasonable time spent on all tasks in the matter including the time spent in support of this instant motion and the anticipated time spent at the hearing.

Plaintiff seeks a multiplier of 1.30. The Court in its discretion declines to apply a multiplier given this was a relatively standard Song-Beverly case with no novel or complex issues of law.

Accordingly, Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$8,437.50.

3. Costs and Expenses

Plaintiff seeks costs in the amount of \$1,681.90. (Khoubian Decl., Ex. C.)

Code of Civil Procedure section 1033.5 sets forth the costs recoverable by the prevailing party. (Code Civ. Proc., §1033.5.) "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., §1033.5(c)(2); *Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 244.) "Allowable costs shall be reasonable in amount." (Code Civ. Proc., §1033.5(c)(3).) The court may allow or deny costs not mentioned in Code of Civil Procedure section 1033.5. (Code Civ. Proc., §1033.5(c)(4).)

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) "There is no requirement that copies of bills, invoices, statements, or any other such documents be attached to the memorandum [of costs]. Only if the costs have been put in issue via a motion to tax costs must supporting documentation be submitted." (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.)

Here, Defendant did not challenge the memorandum of costs.

Accordingly, Plaintiff's Motion for Costs is GRANTED in the amount of \$1,681.90.

IT IS SO ORDERED.

Dated: July 1, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - It is well settled that utilizing a "blended" hourly rate for lodestar methodology is accepted in Song Beverly attorney's fee motions. (See, e.g, *Mikhaeilpoor v. BMW of N. Am., LLC* (2020) 48 Cal.App.5th 240.

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.